

Smt. Mahendri Devi v. State of U.P.

Allahabad High Court · Division Bench · 9 September 2014 · WRIT - C No. 48260 of 2014 · **Writ disposed of; Executive Engineer to pass orders under clause 4.4 read with annexure 4.1 after hearing the landlord.**

HEADNOTE

A tenant challenging an SDO report that a new connection could not be granted without the landlord's permission was remitted to the Executive Engineer to pass appropriate orders under clause 4.4 read with annexure 4.1 of the Electricity Supply Code, 2005, after hearing the landlord, within six weeks. The Court neither granted the connection nor upheld the SDO's bar.

FACTUAL SUMMARY

Smt. Mahendri Devi, a tenant, challenged a Sub-Divisional Officer's report to the Executive Engineer that an electricity connection could not be granted because the landlord had given no permission. She sought a writ so that supply might be released notwithstanding that report. The distribution licensee was represented. The dispute before the Court was only that SDO report and the tenant's pending request for a new connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

tenant connection without landlord permission

HOLDING

Where a tenant seeks a new connection and the SDO has reported that supply cannot be granted for want of the landlord's permission, the Executive Engineer must hear the landlord and pass appropriate orders keeping in view clause 4.4 read with annexure 4.1 of the Electricity Supply Code, 2005, within six weeks of production of a certified copy; the writ court will not itself grant or refuse the connection. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ABSENCE OF LANDLORD PERMISSION BARS A TENANT'S NEW CONNECTION UNDER CLAUSE 4.4

Merits of grant, including any indemnity or owner-consent path under clause 4.4, left to the Executive Engineer after hearing the landlord. ¶ 1